25TRCV01121 25TRCV01121

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-09-02

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Case Number: 25TRCV01121 Hearing Date: September 2, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

ROY
MOORE,

Plaintiff,

Case No.:

25TRCV01121

vs.

[Tentative]
Sustained

BOUNCEVILLE
LLC; SOUTH BAY CENTER SPE, LLC; SOUTH BAY GALLERIA a.k.a. GALLERIA AT SOUTH
BAY; QUEENSLAND INVESTMENT CORPORATION; and DOES 1 through 100, inclusive,

Defendants.

Hearing
Date: September
2, 2026

Moving Parties: Defendants KW-F SBG Owner LLC and KW-F
SBG, LLC

Responding Party: Plaintiff Roy Moore

HEARING: Demurrer

The Court considered the moving,
opposition, and reply papers.

RULING

The
Court sustains the Demurrer with leave to amend.

BACKGROUND

On April
7, 2026, Plaintiff Roy Moore filed the Complaint against Defendants Bounceville LLC, South Bay Center SPE, LLC, South Bay Galleria, and Queensland Investment Corporation alleging causes of action for negligence and premises liability.

On May 18, 2026,
Plaintiff amended the Complaint adding Defendants
KW-F SBG Owner LLC and KW-F SBG, LLC.

July 23. 2026, Defendants KW-F SBG Owner LLC and
KW-F SBG, LLC filed the Demurrer.

On August 19, 2026, Plaintiff filed
the Opposition.

On August 26, 2026, Defendants filed
the Reply.

JUDICIAL

NOTICE

The Court may take judicial notice of records of (1) any court of this state or (2) any court of record of the United States or of any state of the United States. (Evid. Code § 452 subd. (d).) The Court may also take judicial notice of “Official acts of the legislative, executive, and judicial departments of the United States and of any state of the United States.” (Evid. Code § 452 subd. (c).)

Defendant requests that the Court take judicial notice of The Grant Deed in Lieu of Foreclosure affecting the real property commonly known as 1815 Hawthorne Boulevard, Redondo Beach, California, made as of January 27, 2025, by South Bay Center SPE, LLC, as grantor, in favor of KW-F SBG Owner, LLC, as grantee, and recorded January 28, 2025, as Instrument No. 20250055199 in the Official Records of the Los Angeles County Recorder and the Amendments to the Complaint field May 18, 2026.

The Court grants these requests pursuant to Evidence Code section 452 subdivisions (c) and (d).

LEGAL STANDARD

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) “To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged.” (C.A. v. William S. Hart Union High School Dist. (2012)

53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-967.) A demurrer “does not admit contentions, deductions or conclusions of fact or law.” (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for uncertainty may lie if the failure to label the parties and claims renders the complaint so confusing defendant cannot tell what he or she is supposed to respond to. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.) However, “[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly’s of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

DISCUSSION

Meet and confer

Before filing a demurrer, “the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc., § 430.41, subd. (a).)

On July 20, 2026. The parties met by telephone regarding the Demurrer. Therefore, Defendant has satisfied the meet and confer requirements.

Causes of action 1 and 2 – Negligence and Premises Liability.

The elements of a cause of action for premises liability are the same as those for negligence: duty, breach, causation, and damages. (Castellon v. U.S. Bancorp¿(2013) 220 Cal.App.4th 994, 998.) Those who own, possess, or control property generally have a duty to exercise ordinary care in managing the property¿to¿avoid exposing others to an unreasonable risk of harm. (Annocki¿v. Peterson Enterprises, LLC¿(2014) 232 Cal.App.4th 32, 37.) The existence and scope of duty are legal questions for the court. (Id. at p. 36.) If there is a condition that poses a danger to customers and others on the premises, the property owner is “under a duty to exercise ordinary care either to make the condition reasonably safe for their use or to give a warning adequate to enable them to avoid the harm.” (Bridgman v. Safeway Stores, Inc.¿(1960) 53 Cal.2d 443, 446.)

Defendants argue that Defendant KW-F SBG Owner, LLC did not own, possess, or control the Property until more than eight months after Plaintiff's injury. The recorded Grant Deed conclusively establishes that Defendant KW-F SBG Owner, LLC acquired title to the Property no earlier than January 27 to 28, 2025, over eight months after Plaintiff's May 11, 2024 injury. Before that date, title rested with South Bay Center SPE, LLC. Premises liability and negligence claims premised on a dangerous condition of property require ownership, possession, or control at the time of injury, and the judicially noticed Grant Deed conclusively negates that element as to Defendants.

Defendants further argue that Defendant KW-F SBG, LLC is not a legal entity and cannot be liable for anything. That name does not appear in the Grant Deed or any instrument of record affecting the Property, and no such entity is registered with the California Secretary of State or any other jurisdiction. A complaint cannot state a cause of action against an entity that does not exist, because a non-existent entity has no capacity to own, possess, control, or otherwise be legally responsible for anything. The Complaint therefore fails to state facts sufficient to constitute a cause of action against Defendant KW-F SBG, LLC for the independent reason that no such defendant exists to be sued.

In opposition, Plaintiff argues that on its face the deed calls Defendant KW-F SBG Owner, LLC the current beneficiary under an April 2, 2021 deed of trust, recites that the borrowers had defaulted, and claims a transfer tax exemption on the ground that this was a transfer to the beneficiary of a defaulted deed of trust in lieu of foreclosure. Plaintiff contends that Defendants cannot claim the benefit of that recorded declaration before the County and then disown it here.

Plaintiff contends that the real question is whether the deed proves as a matter of law that Defendants had no interest in or control of the Property on the incident date. Plaintiff adds that Defendants may not offer the exhibit for one convenient fact and ignore the rest of the same page, because noticing a document is not the same as accepting its contents. (Joslin v. H.A.S. Ins. Brokerage (1986) 184 Cal.App.3d 369, 374.)

Plaintiff further argues that liability turns on ownership, possession, or control, and that Defendants' own cases make control a question of fact. A defendant who does not own land can still be liable if it controls the land, and the leading authority reversed summary judgment precisely because control was a triable issue. (Alcaraz v. Vece (1997) 14 Cal.4th 1149, 1162, 1170.) Defendants' other authorities were decided on full records rather than on the pleadings, and none involved a beneficiary holding a deed of trust and an Assignment of Leases and Rents while its borrowers were in default. The Complaint pleads control, which a demurrer admits, and whether a lender's involvement exceeds the ordinary role of a lender of money is itself a question of fact. (Nymark v. Heart Fed. Savings & Loan Assn. (1991) 231 Cal.App.3d 1089, 1096.)

“Premises liability is grounded in the possession of the premises and the attendant right to control and manage the premises; accordingly, mere possession with its attendant right to control conditions on the premises is a sufficient basis for the imposition of an affirmative duty to act.” (Sabetian v. Exxon Mobil Corp. (2020) 57 Cal.App.5th 1054, 1071.) “In practical effect, if not in legal parlance, a deed of trust is a lien on the property. It conveys title to the trustee only so far as may be necessary to the execution of the trust for purposes of security. Thus, the right to possession does not pass to the trustee or the beneficiary under a trust deed in the absence of a special agreement.” (Bailey v. Citibank, N.A. (2021) 66 Cal.App.5th 335, 353.) Here, Defendants have shown that neither Defendant KW-F SBG, LLC nor Defendant KW-F SBG Owner, LLC had any possession of the property based on the grant deed. Furthermore, the Complaint fails to plead that Defendants had any control of the property through special agreement or other means. While Plaintiff attempts to rely on the Complaint's agency allegations, they are conclusory and a demurrer “does not admit contentions, deductions or conclusions of fact or law.” (Daar, supra, 67 Cal.2d 695, 713.) Therefore, the Court finds that the first and second causes of action fail to plead that Defendants had any possession or control of the property.

Therefore, the Court sustains the Demurrer with leave to amend.